

Anil Kumar & Ors vs The State (Nct Of Delhi) & Anr on 14 December, 2020

Author: Yogesh Khanna

Bench: Yogesh Khanna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CRL.M.C. 2440/2020
ANIL KUMAR & ORS.

Through : Mr. Kunal Khanna, Adv
versus

THE STATE (NCT OF DELHI) & ANR

Through : Mr.M.S.Oberoi, APP for
Ramesh Kumar, PS Niha
Complainant in person

CORAM:

HON'BLE MR. JUSTICE YOGESH KHANNA
ORDER

% 14.12.2020

1. The hearing has been conducted through Video Conferencing.
2. This petition is filed for quashing of the FIR No.421/2015 under Section 498A/406/34 Indian Penal Code registered at police station Nihal Vihar, Delhi against him and the proceedings emanating therefrom, got registered by respondent No.2.
3. The marriage between the petitioner no.1 and respondent No.2 was solemnized on 30.01.2005 according to Hindu rites and ceremonies. However, due to matrimonial difference, both the parties started living separately since 08.02.2013. In the year 2015, respondent No.2 filed a petition under Section 125 Cr.P.C. against the petitioner No.1 and later on 26.05.2015, the aforesaid FIR was registered. A complaint under Section 12 of the DV Act was also filed in the year 2016. However, on 13.02.2020 the matter was settled between the parties by way of settlement before the Mediation Centre, Tis Hazari Courts, Delhi, which is on record. In lieu of such settlement, now petitioner No.1 and respondent No.2 are residing together in the matrimonial house. It is stated by the petitioner No.1 and respondent No.2 they shall abide by the terms and conditions as set out in para Nos.1 to 8 of the settlement as entered before the Mediation Centre, Tis Hazari Courts, Delhi on 13.02.2020.
4. The complainant/respondent No.2 is present and has been duly identified by SI Ramesh Kumar, Investigating Officer of the case and the respondent No.2 submits she has no objection in case the FIR is quashed as she is residing with petitioner No.1 peacefully in the matrimonial house. The learned APP for State has also no objection, if this petition is allowed.

5. Considering the above settlement between the parties, there is no justification to proceed with the criminal case as complainant has settled all the disputes and joined the matrimonial house with petitioner No.1.

6. Accordingly, the petition is allowed. Consequently, FIR No.421/2015 under Section 498A/406/34 Indian Penal Code registered at police station Nihal Vihar, Delhi and the proceedings emanating therefrom are quashed. Pending application, if any, also stands disposed of.

YOGESH KHANNA, J.

DECEMBER 14, 2020 M